

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 18, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV00376

SCOTT v. DARDEN RESTAURANTS, INC., et al

DEFENDANT’S DEMURRER TO THE COMPLAINT

The demurrer is sustained with leave to amend. The complaint does not identify any causes of action or the parties against whom they are asserted and does not contain a request for relief. Plaintiff is granted leave to file an amended complaint within 20 days from the date of this hearing.

I. COMPLAINT AND DEMURRER

Self-represented plaintiff filed this action against Darden Restaurants, Inc. and Olive Garden Restaurant after he consumed an overly hot pepper from his salad that caused him to have a violent physical reaction, including severe pain, and vomiting as well as ongoing dental issues.

Defendant Darden Restaurants, Inc. (“defendant”) filed this demurrer, arguing that the complaint fails to state facts sufficient to constitute a cause of action, is uncertain, ambiguous, and unintelligible pursuant to Code of Civil Procedure sections 431.01, subdivision (e) and 430.50, subdivision (a). Plaintiff did not file an opposition.

II. LEGAL STANDARDS

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“A demurrer tests the pleading alone, and not the evidence or the facts alleged.” (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) “For that reason, we ‘assume the truth of the complaint's properly pleaded or implied factual allegations.’ [Citation.] We also ‘consider judicially noticed matters.’ [Citation.] ‘In addition, we give the complaint a reasonable interpretation, and read it in context.’ [Citation.]” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 15 Cal.App.4th 1308, 1315.)

III. DISCUSSION

First, plaintiff did not file an opposition to the demurrer, which the court can infer is a concession on the merits of the same. (*D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, fn 4; *Herzberg v. County of Plumas* (2005), 133 Cal.App.4th 1, 20.) “Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.)

Second, the complaint is fatally deficient: it provides a factual background but does not identify any causes of action or against whom the claims are made or the type of damages sought. Each cause of action should be separately stated, numbered, and they must identify who is asserting the claim and against whom the claim is alleged. (See, Cal. Rules of Court, rule 2.112(1)-(4) separate causes of action, counts, and defenses.) “Failure to comply with CRC 2.112 presumably renders a complaint subject to a motion to strike ... or a special demurrer for uncertainty.” (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) § 6.113.) Therefore, the demurrer is sustained with leave to amend.

No. 26CV00531

WELLS FARGO, N.A. v. MARQUEZ

**(UNOPPOSED) PLAINTIFF’S MOTION TO DEEM REQUESTS FOR
ADMISSIONS ADMITTED**

The unopposed motion is granted.

This is a limited jurisdiction collections case. The complaint alleges breach of contract and seeks \$11,615.77 in damages against defendant, who filed an answer on April 14, 2026.

On May 14, 2026, plaintiff served requests for admission set one, on defendant, attached to the declaration of Douglas Agne as Exhibit A. Plaintiff states tdefendant failed to respond to the requests. (Decl. of Agne at ¶ 2.) The requests were served on defendant at 485 Holohan Road, Watsonville, CA, which is the same address defendant used when filing his answer.

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“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one, (Exhibit A to Decl. of Agne) are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.